MERROWFIELD DIGITAL

Reporting a Cyber Incident in India

Document Procedure 03 | Rev 2 | Effective 2 February 2026 | Owner: Office of the Data Protection Officer | Review cycle: 12 months

1. Purpose

This procedure sets out how Merrowfield Digital reports cyber incidents touching its systems or users in India to CERT-In. The deadlines in section 3 are taken from this document and from no other.

An incident can fall under more than one reporting procedure. When it does, each applicable procedure is followed in full, each deadline is counted from that procedure's own start, and the earliest deadline governs the work (Plan 01, section 8).

2. When this procedure applies

This procedure applies when any affected system is hosted in India - hosting region India or EU and India - or when users in India are affected, however few.

It applies to every kind of incident the desk handles, whether or not personal data is involved, and whatever its harm band.

3. Deadlines

The deadlines under this procedure are as follows.

The incident report to CERT-In is due within 6 hours of the first alert.

Hours are counted continuously, through nights, weekends and public holidays. A deadline is met when the report has been submitted, not when it has been drafted.

4. Where the clock starts

The clock under this procedure starts at the first alert: the moment anything at Merrowfield Digital first noticed the incident - a monitoring tool, a partner or a person - recorded on the incident as first_alert_at.

It runs from that moment whether or not the incident has yet been confirmed. An incident still awaiting confirmation can therefore be the most urgent one in the queue while no other procedure's clock has started.

5. What the report contains

The incident report to CERT-In states:

- the type of incident and when it was first noticed
- the systems affected and where they are hosted
- the indicators observed and the actions taken so far
- a point of contact who can answer CERT-In's questions

6. Reporting in phases

If the facts a complete report needs are not established by the deadline, an initial report is submitted on time with what is known, and completed as the facts are established. A complete report submitted late is a late report.

The submission is prepared to be sent no later than 30 minutes before the deadline, the filing reserve set in Plan 01.

7. Customers

This procedure places no duty to tell customers. Whether customers are told is decided under Procedure 01 and Policy 01.

8. Records

Every incident assessed under this procedure is documented - the facts, the decision and the reasons - whether or not a report was submitted. A decision not to report is recorded with its reason, and the record is kept for inspection by CERT-In.

9. The rule this procedure implements

This procedure is modelled on the directions issued by CERT-In on 28 April 2022 under section 70B of the Information Technology Act, 2000, in force since 27 June 2022, which require the incidents they list to be reported to CERT-In within 6 hours of noticing them or being told of them.

The incidents listed include data breaches and data leaks, unauthorised access to systems or data, phishing and identity theft, malicious code such as ransomware, denial-of-service attacks and attacks on cloud systems.

This procedure is Merrowfield Digital's working instruction. It is not legal advice, and where it and the law differ, the law prevails.